



**IN THE HIGH COURT OF KARNATAKA**

**KALABURAGI BENCH**

**DATED THIS THE 1<sup>ST</sup> DAY OF DECEMBER, 2025**

**PRESENT**

**THE HON'BLE MR. JUSTICE H.T.NARENDRA PRASAD**

**AND**

**THE HON'BLE MR. JUSTICE TYAGARAJA N. INAVALLY**

**MISCL. FIRST APPEAL NO.200746 OF 2020 (MV-D)**

**C/W**

**MISCL. FIRST APPEAL NO.200745 OF 2020**

**IN M.F.A.NO.200746/2020**

**BETWEEN:**

1. SMT. KAMALAMMA  
W/O LATE RANGAPPA  
@ RANGANATH KAVALI,  
AGE: 34 YEARS,  
OCC: HOUSE HOLD,
2. SMT. SIDDAMMA  
W/O EARANNA  
AGE: 55 YEARS,  
OCC: HOUSEHOLD,
3. ERANNA  
S/O LATE RANGAPPA,  
AGE: 69 YEARS,  
OCC: NIL,
4. ANIL KUMAR  
S/O LATE RANGAPPA  
@ RANGANATH KAVALI,





AGE: 18 YEARS,  
OCC: STUDENT,

5. SUMITRA @ SUSHMITHA  
D/O LATE RANGAPPA  
@ RANGANATH KAVALI,  
AGE: MINOR AGE: 13,  
OCC: STUDENT,

6. MAHESH  
S/O LATE RANGAPPA  
@ RANGANATH KAVALI,  
AGE: 09 YEARS,  
OCC: STUDENT MINOR,  
APPELLANT NO.5,6 ARE MINORS,  
REPRESENTED BY THEIR MOTHER  
SMT. KAMALAMMA,  
ALL ARE R/O: JANEKAL VILLAGE,  
TQ: MANVI, DIST: RAICHUR,  
NOW R/O: KALMALA,  
TQ & DIST: RAICHUR – 584 101.

...APPELLANTS

(BY SRI BABU H.METAGUDDA, ADVOCATE)

**AND:**

1. K.M. VIKRAM  
S/O K.M.VISHWANATH SWAMY,  
AGE: MAJOR,  
OCC: OWNER OF TANKER LORRY  
NO.KA-35/B-6372,  
R/O: H.NO.472, 5<sup>TH</sup> CROSS, 3<sup>RD</sup> WARD,  
SHADAKSHRAIAH COMPOUND,  
PATEL NAGAR, HOSPET,  
DIST: BALLARI – 583 201.
2. THE DIVISIONAL MANAGER,  
UNITED INDIA INSURANCE CO. LTD.,  
DIVISIONAL OFFICE,



NEAR MOULESHWAR CHOWK,  
ANAGA COMPLEX RAICHUR – 584 101.

3. SOMANNA S/O ERANNA  
AGE: MAJOR,  
OCC: AGRI. OWNER OF MOTOR CYCLE  
NO.KA-36/EP-5179,  
R/O: JANEKAL VILLAGE,  
TQ: MANVI, DIST: RAICHUR – 584 101.

- 3a) SMT. LAXMI  
S/O LATE SOMANNA,  
AGE: MAJOR,  
OCC: HOUSEWIFE & OWNER OF  
MOTOR CYCLE NO.KA-36/EP-5179,  
R/O: JANEKAL VILLAGE,  
TQ: MANVI,  
DIST: RAICHUR – 584 101.

4. THE BRANCH MANAGER,  
NATIONAL INSURANCE CO. LTD.,  
BRANCH OFFICE  
NEAR SURAKSHA HOSPITAL,  
RAICHUR – 584 101.

...RESPONDENTS

(BY SRI J. AUGUSTIN, ADVOCATE FOR R2;  
SRI SUDARSHAN M., ADVOCATE FOR R4; V/O DATED  
11.03.2024 NOTICE TO R1 & R3 (A) DISPENSED WITH)

THIS MFA IS FILED UNDER SECTION 173(1) OF THE  
MOTOR VEHICLES ACT, PRAYING TO ALLOW THIS APPEAL AND  
MODIFY THE JUDGMENT AND AWARD DATED 27.01.2020  
PASSED IN MVC NO. 107/2019 BY THE II ADDL. DIST. AND  
SESSIONS JUDGE AND MACT AT RAICHUR AND ENHANCING  
THE COMPENSATION FROM RS.17,71,600/- WITH 6%  
INTEREST TO RS.60,50,000/- WITH 12% INTEREST AND ETC.



**IN M.F.A.NO.200745/2020**

**BETWEEN:**

1. SMT. LAXSHMI  
W/O LATE SHEKARAPPA @ CHANDRASHEKAR,  
AGE: 24 YEARS, OCC: HOUSEHOLD,
2. SMT. YALLAMMA  
W/O VENKOBA,  
AGE: 51 YEARS,  
OCC: HOUSEHOLD,
3. VENKOBA  
S/O LATE AMARAPPA @ AMARAPPA TALWAR,  
AGE: 51 YEARS, OCC: AGRICULTURE,
4. KUMARI SWETHA  
D/O LATE SHEKARAPPA @ CHANDRASHEKAR,  
AGE: 02 YEARS,  
SINCE MINOR U/G OF APPELLANT NO.1,  
SMT. LAXSHMI,  
ALL ARE R/O: JANEKAL,  
TQ: MANVI,  
NOW R/O: KALMALA,  
TQ. AND DIST: RAICHUR – 584 101.

...APPELLANTS

(BY SRI BABU H.METAGUDDA, ADVOCATE)

**AND:**

1. K.M. VIKRAM  
S/O K.M.VISHWANATH SWAMY,  
AGE: MAJOR,  
OCC: OWNER OF TANKER LORRY  
NO.KA-35/B-6372,  
R/O: H.NO.472, 5<sup>TH</sup> CROSS, 3<sup>RD</sup> WARD,  
SHADAKSHRAIAH COMPOUND,  
PATEL NAGAR, HOSPET,  
DIST: BALLARI – 583 201.



2. THE DIVISIONAL MANAGER,  
UNITED INDIA INSURANCE CO. LTD.,  
DIVISIONAL OFFICE,  
NEAR MOULESHWAR CHOWK,  
ANAGA COMPLEX, RAICHUR – 584 101.
3. SOMANNA S/O ERANNA,  
AGE: MAJOR,  
OCC: AGRI. OWNER OF  
MOTOR CYCLE NO.KA-36/EP-5179,  
R/O: JANEKAL VILLAGE,  
TQ: MANVI, DIST: RAICHUR – 584 101.  
DEAD BY LRS,
- 3a) SMT. LAXMI  
S/O LATE SOMANNA,  
AGE: MAJOR,  
OCC: HOUSEWIFE & OWNER OF  
MOTOR CYCLE NO.KA-36/EP-5179,  
R/O: JANEKAL VILLAGE,  
TQ: MANVI,  
DIST: RAICHUR – 584 101.
4. THE BRANCH MANAGER,  
NATIONAL INSURANCE CO. LTD.,  
BRANCH OFFICE  
NEAR SURAKSHA HOSPITAL,  
RAICHUR – 584 101.

...RESPONDENTS

(BY SRI J. AUGUSTIN, ADVOCATE FOR R2;  
SRI SUDARSHAN M., ADVOCATE FOR R4; V/O DATED  
09.09.2022, NOTICE TO R1 & R3 (A) DISPENSED WITH)

THIS MFA IS FILED UNDER SECTION 173(1) OF THE  
MOTOR VEHICLES ACT, PRAYING TO ALLOW THIS APPEAL AND  
MODIFY THE JUDGMENT AND AWARD DATED 27.01.2020  
PASSED IN MVC NO.106/2019 BY THE II ADDL. DIST. AND  
SESSIONS JUDGE AND MACT AT RAICHUR AND ENHANCING



**NC: 2025:KHC-K:7373-DB**  
**MFA No. 200746 of 2020**  
**C/W MFA No. 200745 of 2020**

THE COMPENSATION FROM RS.17,83,600/- WITH 6% INTEREST TO RS.60,50,000/- WITH 12% INTEREST AND ETC.

THESE MFA'S, COMING ON FOR FINAL HEARING, THIS DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE H.T.NARENDRA PRASAD  
AND  
HON'BLE MR. JUSTICE TYAGARAJA N. INAVALLY

**ORAL JUDGMENT**

(PER: HON'BLE MR. JUSTICE H.T.NARENDRA PRASAD)

MFA No.200746/2020 has been filed by the claimants in MVC No.107/2019 for the death of deceased Rangappa @ Ranganath and MFA No.200745/2020 has been filed by the claimants in MVC No.106/2019 for the death of deceased Shekarappa @ Chandrashekar being aggrieved by the common judgment and award dated 27.01.2020 passed by the II Additional District and Sessions Judge and MACT, Raichur (for short, 'the Tribunal').

2. Facts giving rise to the filing of the appeals briefly stated are that on 08.12.2018, when the deceased Rangappa @ Ranganath Kavali was riding a motorcycle bearing registration No.KA-36/EP-5179 and deceased



Shekarappa @ Chandrashekar as a pillion rider, when they reached near Nasalapur on Manvi to Sindhanur road, at about 4:30 PM, the driver of the Tanker lorry bearing Reg.No.KA-35/B-6372 came with high speed and in a rash and negligent manner, dashed against the motorcycle. As a result, they both fell down and sustained injuries. The deceased Shekarappa @ Chandrashekar succumbed to the injuries at the spot itself whereas deceased Rangappa @ Ranganath Kavali succumbed to the injuries while taking treatment on the same day.

3. The claimants of both the deceased filed petitions under Section 166 of the Motor Vehicles Act seeking compensation for the death of the deceased along with interest.

4. Upon service of notice, respondent Nos.1, 2 and 4 have appeared through counsel and filed their written statements denying the averments made in the claim petition. Respondent No.3(a) was placed ex-parte.



5. On the basis of the pleadings of the parties, the Claims Tribunal framed the issues in both the cases and thereafter, recorded the evidence. The Tribunal, by the impugned common judgment and award has partly allowed the claim petitions and held that the claimants in MVC No.107/2019 are entitled to total compensation of Rs.17,71,000/- along with interest at the rate of 8% p.a. and directed respondent Nos.1 and 2 to deposit 70% of the total compensation and directed respondent No.2 being the insurer of offending Tanker to deposit compensation amount along with interest.

6. Likewise, the claimants in MVC No.106/2019 are entitled to total compensation of Rs.17,83,600/- along with interest at the rate of 8% p.a. and directed respondent Nos.1 and 2 to pay 70% of the total compensation and further directed respondent Nos.3 and 4 to pay remaining 30% of the compensation amount along with interest and directed respondent Nos.2 and 4 being the insurers of the offending vehicles to deposit the





compensation amount. Being aggrieved, the present appeals have been filed.

7. The learned counsel for the claimants has raised the following contentions:

a) Firstly, accident has occurred due to the negligence of driver of the tanker lorry. He came to the extreme right side and dashed to the motorcycle. The Tribunal has erred in holding that rider of the motorcycle has also contributed to the extent of 30%.

b) Secondly, immediately after the accident, the complaint has been lodged against the driver of the lorry. The claimant also examined PW.3 who is the eyewitness to the accident. He has categorically stated that driver of the lorry was negligent in causing the accident. As per the spot Mahazar, MVA Report and the sketch, it is clear that driver of the lorry was negligent in causing the accident.

c) Thirdly, the claimants in MVC No.106/2019 assert that the deceased Shekarappa was aged about 28 years at



the time of the accident and had a monthly income of Rs.15,000/- by working as a Mason. The claimants in MVC No.107/2019 contended that the deceased Rangappa was aged about 36 years at the time of accident and was earning monthly income of Rs.15,000/- by working as a Mason. However, the assessment of monthly income of both the deceased at Rs.9,000/- by the Tribunal is unjustified and erroneous.

d) Fourthly, since there are four claimants in MVC No.106/2019, the Tribunal has wrongly deducted 1/3<sup>rd</sup> of the income of the deceased towards personal expenses instead of 1/4<sup>th</sup>.

e) As per the judgment of the Hon'ble Supreme Court in the case of ***Magma General Insurance Company Limited vs. Nanu Ram and others, 2018 ACJ 2782*** each of the claimants in both the cases are entitled to compensation of Rs.40,000/- under the head of 'loss of love and affection and consortium'.



f) Lastly, considering the age and avocation of the deceased in both the cases, the overall compensation awarded by the Tribunal is inadequate and on the lower side. With the above contentions, the learned counsel sought to allow the appeals.

8. On the other hand, the learned counsel for respondent No.2-United India Insurance Company Limited has raised the following counter-contentions:

a) Firstly, accident has occurred due to the negligence of the driver of the lorry as well as the rider of the motorcycle.

b) Secondly, as per spot mahazar and sketch, the width of the road was 30 ft. The rider of the motorcycle was riding the motorcycle in the middle of the road. There was sufficient space on the left side of the motorcycle and he was coming in high speed and in rash and negligent manner and dashed to the lorry. The police registered the FIR against the driver of the lorry as well as the rider of the motorcycle and filed the charge sheet against the



driver of the lorry and abated charge sheet against the rider of the motorcycle. Considering this aspect of the matter and considering the sketch map, MVA Report and spot mahazar, the Tribunal has rightly held that driver of the lorry has contributed to an extent of 70% and rider of motorcycle has contributed to an extent of 30% to the accident.

c) Thirdly, although the claimants claim that the both the deceased were earning Rs.15,000/- per month, they have failed to substantiate their claim with supporting documents. Consequently, the Tribunal has correctly assessed the income of the deceased notionally.

d) Fourthly, on appreciation of oral and documentary evidence and considering the age and avocation of the deceased, the overall compensation awarded by the Tribunal in both the cases is just and reasonable.

e) Lastly, in light of the Division Bench decision of this Court in the case of **Ms.Joyeeta Bose And Others –V- Venkateshan.V And Others** (MFA 5896/2018 AND



*Connected Matters Disposed Of On 24.8.2020*), the rate of interest awarded by the Tribunal at 8% p.a. on the compensation amount is on the higher side. With the above contentions, the learned counsel sought to dismiss the appeals.

9. Heard the learned counsel for the parties and perused the judgment and award of the Tribunal.

10. The case of the claimants is that on 08.12.2018 deceased Shekarappa and Rangappa were proceeding on a motorcycle bearing Reg.No.KA-36/EP-5179 which was ridden by deceased Rangappa and Shekarappa was a pillion rider. When they reached near Nasalapur on Manvi to Sindhanur at about 4:30 PM, the driver of the lorry came with high speed and in rash and negligent manner and dashed against the motorcycle. Due to the said accident, they fell down and sustained injuries and succumbed to the injuries. To prove their case, the claimants have examined Smt.Lakshmi as PW.1 and Smt.Kamamma as PW.2 and one eyewitness Sri.Santosh



as PW.3. PWs.1 and 2 have reiterated the statements made in the claim petition. PW.3 has categorically stated that accident has occurred due to negligence of the driver of the lorry.

11. Under the Motor Vehicles Act in the claim petition before the Claims Tribunal the standard of proof is much below than what is required in a criminal case as well as in the civil case. No doubt, before the Tribunal, there must be some material on the basis of which the Tribunal can arrive or decide things necessary to decide for awarding compensation, but the Tribunal is not expected to take or to adopt a nicety of a civil or criminal case. After all it is a summary enquiry and it is the legislation for the welfare of the Society. The proceedings under the Motor Vehicles Act are not akin to the proceedings under civil rules. Hence, strict rules of evidence are not required to be followed in this regard. In the case of **MANGLA RAM –v- ORIENTAL INSURANCE**



**COMPANY LIMITED (2018) 5 SCC 656**, the Hon'ble

Apex Court has held as hereinbelow:

*"25. In Dulcina Fernandes, this Court examined similar situation where the evidence of claimant's eyewitness was discarded by the Tribunal and that the respondent in that case was acquitted in the criminal case concerning the accident. This Court, however, opined that it cannot be overlooked that upon investigation of the case registered against the respondent, prima facie, materials showing negligence were found to put him on trial. The Court restated the settled principle that the evidence of the claimants ought to be examined by the Tribunal on the touchstone of preponderance of probability and certainly the standard of proof beyond reasonable doubt could not have been applied."*

12. Immediately after the accident, case was registered against the driver of the lorry and rider of the motorcycle. Charge sheet is also filed against the driver of



the lorry and abated charge sheet against the rider of the motorcycle.

**Reg: Liability:**

13. We have perused the spot mahazar (Ex.P2). As per Ex.P2, accident took place on Manvi-Sindhanur highway. Sketch under Ex.P2 reveals that road is straight road measuring 30ft. wide. The place of accident is depicted at a distance of 14ft. from the left edge of the road which proceeds from Manvi towards Sindhanur. It is an undisputed fact that the deceased persons were proceeding on a motorcycle from Manvi towards Sindhanur and the tanker came from opposite direction. As per the sketch, it is very clear that the driver of the offending tanker has come to the extreme right side and dashed against the motorcycle. It is very clear that driver of the lorry was negligent in causing the accident. To disprove the case of the claimants, the Insurance Company has not examined the driver of the lorry. They have examined RW.1 who is the officer of respondent No.2 Insurance





Company. Considering the spot mahazar, MVA report, evidence of PW.3, we are of the opinion that accident has occurred solely due to the negligence of the driver of the lorry.

**Reg: Quantum of Compensation:**

**In MVC No.107/2019**

14. The claimants claim that deceased Rangappa was earning Rs.15,000/- per month, but failed to produce supporting documents to substantiate their claim. In the absence of proof of income, the notional income has to be assessed. According to the guidelines issued by the Karnataka State Legal Services Authority, for accidents occurred in the year 2018, the notional income of the deceased shall be taken at Rs.11,750/- p.m. To the aforesaid income, 40% has to be added on account of future prospects in view of the law laid down by the Constitution Bench of the Supreme Court in '**National Insurance co. Ltd. -v- Pranay Sethi And Others [AIR 2017 SC 5157]**', Thus, the monthly income comes to



Rs.16,450/-. Since there are 06 dependents, it is appropriate to deduct  $1/4^{\text{th}}$  of the income of the deceased towards personal expenses and remaining amount has to be taken as his contribution to the family. The deceased was aged about 36 years at the time of the accident and multiplier applicable to his age group is '15'. Thus, the claimants are entitled to compensation of Rs.22,20,750/- ( $\text{Rs.16,450} \times 12 \times 15 \times 3/4$ ) on account of 'loss of dependency'.

15. In addition, the claimants are entitled to compensation of Rs.15,000/- on account of 'loss of estate' and compensation of Rs.15,000/- on account of 'funeral expenses'. Claimant No.1, wife of the deceased is entitled for compensation of Rs.40,000/- under the head of 'loss of spousal consortium'.

16. In view of the law laid down by the Supreme Court in the case of '**Magma General Insurance Co. Ltd.,**' (supra), claimant Nos.2 and 3, parents of the deceased are entitled for compensation of Rs.40,000/-



each under the head of 'loss of filial consortium'. Claimant Nos.4 to 6 children of the deceased are entitled for compensation of Rs.40,000/- each under the head of 'loss of parental consortium'.

17. Thus, the claimants are entitled to the following compensation:

| <b>Compensation under different Heads</b> | <b>Amount in (Rs.)</b> |
|-------------------------------------------|------------------------|
| Loss of dependency                        | 22,20,750              |
| Funeral expenses                          | 15,000                 |
| Loss of estate                            | 15,000                 |
| Loss of spousal consortium                | 40,000                 |
| Loss of Parental consortium               | 1,20,000               |
| Loss of Filial consortium                 | 80,000                 |
| <b>Total</b>                              | <b>24,90,750</b>       |

**In MVC No.106/2019**

18. The claimants claim that deceased Shekarappa was earning Rs.15,000/- per month, but failed to produce supporting documents to substantiate their claim. In the



absence of proof of income, the notional income has to be assessed. According to the guidelines issued by the Karnataka State Legal Services Authority, for accidents occurred in the year 2018, the notional income of the deceased shall be taken at Rs.11,750/- p.m. To the aforesaid income, 40% has to be added on account of future prospects in view of the law laid down by the Constitution Bench of the Supreme Court in '**Pranay Sethi**' (supra). Thus, the monthly income comes to Rs.16,450/-. Since there are 04 dependents, it is appropriate to deduct  $\frac{1}{4}^{\text{th}}$  of the income of the deceased towards personal expenses and remaining amount has to be taken as his contribution to the family. The deceased was aged about 28 years at the time of the accident and multiplier applicable to his age group is '17'. Thus, the claimants are entitled to compensation of Rs.25,16,850/- ( $\text{Rs.16450} \times 12 \times 17 \times \frac{3}{4}$ ) on account of 'loss of dependency'.



19. In addition, the claimants are entitled to compensation of Rs.15,000/- on account of 'loss of estate' and compensation of Rs.15,000/- on account of 'funeral expenses'. Claimant No.1, wife of the deceased is entitled for compensation of Rs.40,000/- under the head of 'loss of spousal consortium'.

20. In view of the law laid down by the Supreme Court in the case of '**Magma General Insurance Co. Ltd.,**' (supra), claimant Nos.2 and 3, parents of the deceased are entitled for compensation of Rs.40,000/- each under the head of 'loss of filial consortium'. Claimant No.4-daughter of the deceased is entitled for compensation of Rs.40,000/- under the head of 'loss of parental consortium'.

21. Thus, the claimants are entitled to the following compensation:

| Compensation under different Heads | Amount in (Rs.) |
|------------------------------------|-----------------|
| Loss of dependency                 | 25,16,850       |



|                             |                  |
|-----------------------------|------------------|
| Funeral expenses            | 15,000           |
| Loss of estate              | 15,000           |
| Loss of spousal consortium  | 40,000           |
| Loss of Parental consortium | 40,000           |
| Loss of Filial consortium   | 80,000           |
| <b>Total</b>                | <b>27,06,850</b> |

22. In the result, the following order is passed:

ORDER

- a) The appeals are ***allowed in part.***
- b) The judgment of the Claims Tribunal is modified.
- c) The claimants in MVC No.107/2019 are entitled to a total compensation of Rs.**24,90,750/-** as against Rs.17,71,000/- awarded by the Tribunal.
- d) The claimants in MVC No.106/2019 are entitled to a total compensation of Rs.**27,06,850/-** as against Rs.17,83,600/- awarded by the Tribunal.
- e) Following the judgment of the Division Bench of this Court in the case of '***Ms.Joyeeta Bose***' (supra), the



enhanced compensation shall carry interest at 6% p.a.

- f) Respondent No.2-Insurance Company is directed to deposit the entire compensation amount along with interest at 6% p.a. from the date of filing of the claim petition till the date of realization, within a period of six weeks from the date of receipt of a copy of this judgment.
- g) The apportionment, deposit and release of amount shall be made in accordance with the terms of the award of the Tribunal.

**Sd/-**  
**(H.T.NARENDRA PRASAD)**  
**JUDGE**

**Sd/-**  
**(TYAGARAJA N. INAVALLY)**  
**JUDGE**